

HOUSE JOINT RESOLUTION 49

By Sexton

A RESOLUTION to propose an amendment to Article I, Section 15 of the Constitution of Tennessee, relative to bail.

WHEREAS, Senate Joint Resolution No. 919 of the One Hundred Thirteenth General Assembly, which proposed amendment of Article 1, Section 15 of the Constitution of Tennessee, relative to bail, was considered and agreed to by a majority of all the members elected to each of the two houses, as shown by the yeas and nays entered on their journals; and

WHEREAS, on April 23, 2024, such resolution proposing such amendment was published in compliance with Article XI, Section 3 of the Constitution of Tennessee; now, therefore,

BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES OF THE ONE HUNDRED FOURTEENTH GENERAL ASSEMBLY OF THE STATE OF TENNESSEE, THE SENATE CONCURRING, that a two-thirds majority of all the members elected to each house concurring, as shown by the yeas and nays entered on their journals, that it is proposed that Article I, Section 15 of the Constitution of Tennessee be amended by deleting the following:

That all prisoners shall be bailable by sufficient sureties, unless for capital offences, when the proof is evident, or the presumption great. And the privilege of the writ of Habeas Corpus shall not be suspended, unless when in case of rebellion or invasion, the General Assembly shall declare the public safety requires it.

and substituting instead the following:

(a) All prisoners shall be bailable by sufficient sureties unless for the following when the proof is evident or the presumption great:

(1) A capital offense;

- (2) An act of terrorism;
- (3) Second degree murder;
- (4) Aggravated rape of a child;
- (5) Aggravated rape;
- (6) Grave torture; and

(7) Any other offense for which, as of November 3, 2026, a defendant, if convicted, could not be released prior to the expiration of at least eighty-five percent of the entire sentence imposed.

(b) In any case in which bail for an offense listed in subsection (a) is granted or denied before conviction, the judge or magistrate shall place in the record the judge's or magistrate's reasons for granting or denying bail.

(c) The privilege of the writ of Habeas Corpus shall not be suspended, unless when in case of rebellion or invasion, the General Assembly shall declare the public safety requires it.

BE IT FURTHER RESOLVED, that in accordance with Article XI, Section 3 of the Constitution of Tennessee, the foregoing proposed amendment shall be submitted to the people at the next general election in which a governor is to be chosen, the same being the 2026 November general election, and the Secretary of State is directed to place such proposed amendment on the ballot for that election.

BE IT FURTHER RESOLVED, that the Clerk of the House of Representatives is directed to deliver copies of this resolution to the Secretary of State, with this final resolving clause being deleted from such copies.